

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:

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M.A., an infant by his mother and
natural guardian, SHEBA ANDERSON, and
SHEBA ANDERSON, Individually,

SUMMONS

Plaintiff,

Plaintiff designates
New York County as
the place of trial.

-against-

THE CITY OF NEW YORK and P.O. JEFFREY
MOTA SHIELD NUMBER 29380,

The basis of venue
is: location of
accident

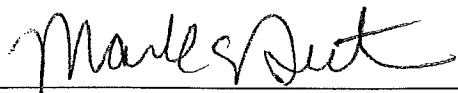
Defendants.
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Plaintiff resides
at:
825 Columbus Avenue
County of New York

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 23, 2015


MARK E. SEITELMAN LAW OFFICES, P.C.
Attorneys for Plaintiff(s)
111 Broadway, 9th Floor
New York, NY 10006
(212) 962-2626

TO: THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. JEFFREY MOTA
One Police Plaza
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
M.A., an infant by his mother and
natural guardian, SHEBA ANDERSON, and
SHEBA ANDERSON, Individually,

Plaintiff,

COMPLAINT

Index No.

-against-

THE CITY OF NEW YORK and P.O. JEFFREY
MOTA SHIELD NUMBER 29380,

Defendant.

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Plaintiff, by her attorneys MARK E. SEITELMAN LAW OFFICES,
P.C., complaining of the defendant respectfully alleges, upon
information and belief:

1. Plaintiffs reside at 825 Columbus Avenue, Apt. 13F, New
York, New York 10025.

2. The cause of action alleged herein arose in the County
of New York, City and State of New York.

3. Defendant THE CITY OF NEW YORK was, and still is, a
municipal corporation.

4. On November 6, 2014, and within the time prescribed by
law, a sworn Notice of Claim stating, among other things, the time
when and place where the injuries and damages were sustained,
together with plaintiff's demands for adjustment thereof was duly
served on the plaintiff's behalf on the Comptroller for the City
of New York and that thereafter said Comptroller for the City of
New York refused or neglected for more than thirty (30) days, and
up to the commencement of this action, to make any adjustment or

payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. On February 13, 2015, pursuant to General Municipal Law 50(h), a hearing was held for each plaintiff.

6. This action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

7. Defendant owns, operates, manages, maintains and/or has a department known as the New York City Police Department.

8. At all times hereinafter mentioned, defendant P.O. JEFFREY MOTA SHIELD NUMBER 29380, was an agent, servant and/or employee of either defendant THE CITY OF NEW YORK and New York City Police Department, or both.

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF INFANT PLAINTIFF**

9. On August 11, 2014, infant plaintiff was falsely arrested by members of defendant's Police Department, and more specifically defendant P.O. JEFFREY MOTA SHIELD NUMBER 29380.

10. Infant Plaintiff was arrested without probable cause and justification.

11. As a result of said arrest, infant plaintiff was imprisoned.

12. Infant Plaintiff alleges that he was falsely arrested and imprisoned.

13. As a result, infant plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF INFANT PLAINTIFF

14. Infant Plaintiff alleges that he was falsely arrested and wrongfully imprisoned as aforesaid.

15. As a result of the aforesaid, infant plaintiff was caused to suffer a violation of his state and federal rights.

16. The aforesaid was due to the carelessness, recklessness and negligence of defendant in the ownership, operation, maintenance and control of its aforesaid Police Department and its employees, including but not limited to defendant JEFFREY MOTA SHIELD NUMBER 29380.

17. As a result of defendants' negligence, infant plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF INFANT PLAINTIFF

18. Infant Plaintiff alleges that he was falsely arrested and wrongfully imprisoned as aforesaid.

19. As a result of the aforesaid, infant plaintiff was caused to suffer serious and permanent personal injuries, embarrassment, humiliation, stress, depression, psychological difficulties, and emotional distress.

20. The aforesaid was due to the carelessness, recklessness and negligence of defendant in the ownership, operation, maintenance and control of its aforesaid Police Department and its employees, including but not limited to defendant JEFFREY MOTA SHIELD NUMBER 29380.

21. As a result of defendant's negligence, infant plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF INFANT PLAINTIFF

22. Infant Plaintiff alleges that excessive force was used in falsely arresting and wrongfully imprisoning him.

23. As a result of the aforesaid, the infant plaintiff was caused to suffer serious and permanent personal injuries, embarrassment, humiliation, stress, depression, psychological difficulties, and emotional distress.

24. The aforesaid was due to the carelessness, recklessness and negligence of defendant in the ownership, operation, maintenance and control of its aforesaid Police Department and its employees, including but not limited to defendant JEFFREY MOTA SHIELD NUMBER 29380.

25. As a result of defendant's negligence, the infant plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF INFANT PLAINTIFF

26. Defendant by its servants, agents and/or employees committed an assault upon the infant plaintiff.

27. As a result, the infant plaintiff sustained serious personal injuries as aforesaid.

28. As a result of defendant's assault, the infant plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF INFANT PLAINTIFF

29. Defendant by its servants, agents and/or employees intentionally committed a battery upon the infant plaintiff.

30. As a result, the infant plaintiff sustained serious personal injuries as aforesaid.

31. As a result of defendant's battery, the infant plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF INFANT PLAINTIFF

32. Plaintiff was maliciously prosecuted by defendant.

33. As a result of defendant's malicious prosecution the infant plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

34. The infant Plaintiff was maliciously prosecuted by defendant.

35. As a result of defendant's malicious prosecution the infant plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHEBA ANDERSON

36. At all times herein mentioned, Plaintiff SHEBA ANDERSON was the mother of Infant-Plaintiff and as such was entitled to the services, society and companionship of the Infant-Plaintiff.

37. That by reason of the foregoing, Plaintiff SHEBA ANDERSON has been deprived of the services, society and companionship of Infant-Plaintiff.

38. That by reason of the foregoing, Plaintiff SHEBA ANDERSON has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHEBA ANDERSON

39. On August 11, 2014, plaintiff SHEBA ANDERSON was falsely arrested by members of defendant's Police Department, and more specifically officers from the 24th precinct.

40. Plaintiff SHEBA ANDERSON was arrested without probable cause and justification.

41. As a result of said arrest, plaintiff SHEBA ANDERSON was imprisoned.

42. Plaintiff SHEBA ANDERSON alleges that she was falsely arrested and imprisoned.

43. As a result, plaintiff SHEBA ANDERSON has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHEBA ANDERSON

44. Plaintiff SHEBA ANDERSON alleges that she was falsely arrested and wrongfully imprisoned as aforesaid.

45. As a result of the aforesaid, plaintiff SHEBA ANDERSON was caused to suffer a violation of her state and federal rights.

46. The aforesaid was due to the carelessness, recklessness and negligence of defendant in the ownership, operation, maintenance and control of its aforesaid Police Department and its employees, including but not limited to officers of the 24th precinct.

47. As a result of defendant's negligence, plaintiff SHEBA ANDERSON has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A ELEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHEBA ANDERSON

48. Infant Plaintiff alleges that she was falsely arrested and wrongfully imprisoned as aforesaid.

49. As a result of the aforesaid, plaintiff SHEBA ANDERSON was caused to suffer serious and permanent personal injuries, embarrassment, humiliation, stress, depression, psychological difficulties, and emotional distress.

50. The aforesaid was due to the carelessness, recklessness and negligence of defendant in the ownership, operation, maintenance and control of its aforesaid Police Department and its employees, including but not limited to officers of the 24th precinct.

51. As a result of defendant's negligence, plaintiff SHEBA ANDERSON has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A TWELFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHEBA ANDERSON**

52. Plaintiff SHEBA ANDERSON alleges that excessive force was used in falsely arresting and wrongfully imprisoning her.

53. As a result of the aforesaid, the plaintiff SHEBA ANDERSON was caused to suffer serious and permanent personal injuries, embarrassment, humiliation, stress, depression, psychological difficulties, and emotional distress.

54. The aforesaid was due to the carelessness, recklessness and negligence of defendant in the ownership, operation, maintenance and control of its aforesaid Police Department and its employees, including but not limited to officers of the 24th precinct.

55. As a result of defendant's negligence, plaintiff SHEBA ANDERSON has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHEBA ANDERSON**

56. Defendant by its servants, agents and/or employees committed an assault upon plaintiff SHEBA ANDERSON.

57. As a result, plaintiff SHEBA ANDERSON sustained serious personal injuries as aforesaid.

58. As a result of defendant's assault, plaintiff SHEBA ANDERSON has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHEBA ANDERSON

59. Defendant by its servants, agents and/or employees intentionally committed a battery upon plaintiff SHEBA ANDERSON.

60. As a result, plaintiff SHEBA ANDERSON sustained serious personal injuries as aforesaid.

61. As a result of defendant's battery, plaintiff SHEBA ANDERSON has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHEBA ANDERSON

62. Plaintiff SHEBA ANDERSON was maliciously prosecuted by defendant.

63. As a result of defendant's malicious prosecution plaintiff SHEBA ANDERSON has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs demand judgment against the defendant herein on all causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of

this action.

Yours, etc.,

A handwritten signature in dark ink, appearing to read 'Mark E. Seitelman', with a long horizontal flourish extending to the right.

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